

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***DeLeon v. Fresno Community Hospital and Medical Center, et al.***

Superior Court Case No. 24CECG00946

Hearing Date: July 28, 2026 (Dept. 501)

Motion: by Defendant Loveneet Singh, M.D. for Summary Judgment

If oral argument is timely requested, it will be entertained on Thursday, July 30, 2026, at 3:00 p.m. in Department 501.

Tentative Ruling:

To grant. Prevailing party is directed to submit to this court, within 5 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

Plaintiff alleges in this medical malpractice action that defendant Loveneet Singh, M.D. was negligent in the care and treatment of plaintiff with regard to the obstetrics, anesthesia, and general pre and post-partum care rendered to decedent Kyana Hickenbottom between November 21, 2022 and December 7, 2022. (FAC, MM-1, ¶¶ 2-3.) Dr. Singh now moves for summary judgment.

As the moving party, Dr. Singh bears the initial burden of proof to show that plaintiff cannot establish one or more elements of their causes of action or to show that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) Only after the moving party has carried this burden of proof does the burden of proof shift to the other party to show that a triable issue of one or more material facts exists – and this must be shown via specific facts and not mere allegations. (*Id.*)

California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.

(*Munro v. Regents of Univ. of Calif.* (1989) 215 Cal.App.3d 977, 984-85.)

Where the moving party produces competent expert opinion declarations showing that there is no triable issue of fact on an essential element of the opposing party's claim (e.g. that a medical defendant's treatment fell within the applicable standard of care), the opposing party's burden is to produce competent expert opinion declarations to the contrary. (*Ochoa v. Pacific Gas & Elec. Co.* (1998) 61 Cal.App.4th 1480, 1487.)

Dr. Singh relies on a declaration by expert Peter Cassini, M.D., a board certified neurologist who has treated and cared for many patients similar to decedent. Based on his knowledge, education, training, professional experience and review of the relevant materials in this case, Dr. Cassini concludes that Dr. Singh complied with the applicable standard of care with respect to their treatment and care of plaintiff, and that no act or omission by Dr. Singh was a substantial factor in causing decedent's death. (Cassini Decl., ¶¶ 4, 6-7; UMF Nos. 22, 52, 53.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 07/24/26
(Judge's initials) (Date)